

Ekta Malviya v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 7 May 2025 · 2025:AHC:73966-DB · Writ - C No. 14221 of 2025 · **Writ disposed; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

A writ challenging an Executive Engineer's order and seeking a new meter and correct billing is not maintainable where disputed questions of fact arise; the consumer must approach the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ekta Malviya filed a writ petition challenging an order dated 24 March 2025 of the Executive Engineer, Electricity Distribution Division-IV, Purvanchal Vidyut Vitran Nigam Limited, Varanasi. She also sought directions to stop the existing meter billing, install a new meter, issue a proper bill according to the reading, and restrain disconnection of supply during the pendency of the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as forum for billing and meter grievances

HOLDING

Where a challenge to an Executive Engineer's order and a prayer to stop meter billing, install a new meter, and issue a correct bill raise several disputed questions of fact, the writ is not amenable to Article 226 jurisdiction. The consumer is to be relegated to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, and was directed to apply within two weeks, the Forum to decide within eight weeks after hearing. ¶ 1-2

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

A writ challenging an Executive Engineer's order and seeking a new meter and correct billing is not maintainable where disputed questions of fact arise; the consumer must approach the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005.

¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 24 MARCH 2025 EXECUTIVE ENGINEER ORDER AND THE CLAIMS FOR A NEW METER, CORRECT BILLING, AND RESTRAINT ON DISCONNECTION

Left to the Consumer Grievance Redressal Forum under clause 7.10; the Court declined to examine disputed questions of fact. ¶ 1-2